

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 16, 2026
8:30 a.m./1:30 p.m.

19. JUSTIN SIMARRO V. YAJAIRA SIMARRO

PFL20200099

On November 6, 2025, Respondent filed a Request for Order (RFO) seeking an order for Petitioner to pay credit card debts.

On November 17th, Respondent filed an Order to Show Cause and Affidavit for Contempt (OSC).

Respondent filed another RFO on January 16, 2026.

On February 13, 2026, Respondent filed a Proof of Service indicating service of an “FL300, ex parte” and an “FL300.” There are currently three RFOs pending before the court and the Proof of Service does not specify which one was served. Additionally, the Notice of Tentative Ruling was not served, nor was a blank Responsive Declaration to Request for Order.

According to the Proof of Service, the “FL410” was personally served on Petitioner.

Parties appeared for the hearing on February 26, 2026. The court arraigned Petitioner on the OSC. Petitioner requested additional time to hire counsel. The court continued the OSC for further arraignment to April 23, 2026 at 1:30 PM.

The court continued the November 6, 2025, RFO to allow Respondent time to file a corrected Proof of Service.

Respondent filed Proof of Service on April 1, 2026 showing Respondent was personally served with all the required documents.

On April 23, 2026, the court appointed the office of the Public Defender to Petitioner and continued the arraignment.

On June 18, 2026, the office of the Public Defender declared an overwork conflict and they were thanked and relieved. The court appointed the office of the Alternate Public Defender to Petitioner and once again continued the arraignment.

The parties are ordered to appear on the RFO.

TENTATIVE RULING #19: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.